

defendant Diego Ibarra, file and serve on all parties a notice of continued hearing including this order, and file proofs of service by June 9, 2026.

6. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables

Motion to Dismiss

Defendants ESP School Fund, Inc., Energy Saving Pros, Energy Saving Pros Construction, Inc., and Brian Pierce move to dismiss the action against them on the basis that plaintiff failed to bring the action to trial within five years pursuant to Code of Civil Procedure sections 583.310 and 583.360. Moving defendants also seek an order that they are the prevailing parties as to plaintiff. A review of the court's file reveals plaintiff dismissed the moving defendants on December 11, 2025, over one month before this motion was filed. While defendants acknowledge the December 11, 2025 dismissal, they argue the voluntary dismissal was ineffective because the five-year period had already elapsed and they are entitled to mandatory dismissal under Code of Civil Procedure section 583.360. However, defendants did nothing to enforce the five-year statute until after dismissal had already occurred.

Accordingly, this motion to dismiss is denied as moot and the court does not determine moving defendants to be prevailing parties.

7. S-CV-0051379 Nayeri, Parvin v. Regents of the Univ. of Cal.

Defendants' motion for summary judgment or, in the alternative, summary adjudication is dropped from calendar as moot in light of the full dismissal with prejudice filed May 28, 2026.

8. S-CV-0052071 Mustain, William v. Johnson, Richard Wayne

If oral argument is requested, it will be heard in Department 42 at **8:30 a.m.** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval

Plaintiff moves for an order finally approving the parties' class action and PAGA action settlement. No opposition has been filed. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) This motion is supported by insufficient notice.

The court on its own motion continues the motion for final approval to be heard on **June 23, 2026 at 8:30 a.m. in Department 42**. By June 5, 2026, plaintiff shall file and serve a notice of continued hearing on all parties.

9. S-CV-0054031 Temple, Georgette v. Rothlisberger, Brian

Plaintiff Georgette Temple (“Plaintiff”) filed this action against Defendants Brian Rothlisberger, M.D. (“Dr. Rothlisberger” or “Moving Defendant”), Gabriel Jacob, M.D. (“Dr. Jacob”), and Neha Dang, M.D. (“Dr. Dang”) (collectively “Defendants”) alleging a single claim for general negligence. Plaintiff asserts that Defendants negligently failed to recognize and timely respond to signs of Plaquenil retinal toxicity during Plaintiff’s long term treatment with the medication Plaquenil (hydroxychloroquine). Plaintiff took Plaquenil to treat systemic lupus erythematosus for approximately 20 to 30 years. Plaintiff alleges that the drug is known to cause eye damage and that Defendants failed to discontinue the medication despite Plaintiff’s repeated complaints of progressive vision loss, blurry vision, impaired color perception, flashes, and other visual symptoms, ultimately resulting permanent retinal injury and legal blindness.

Defendants deny Plaintiff’s claims. Plaintiff filed this action on November 14, 2024, and amended her complaint on December 27, 2024. On or about April 25, 2026 Plaintiff dismissed Dr. Dang with prejudice from this action. On April 29, 2026 Dr. Rothlisberger moved for summary judgment, or in the alternative, summary adjudication (“Motion”) on Plaintiff’s claim against him. Plaintiff opposes the Motion.

Evidentiary Objections

Defendant submits various objections to the Declarations of Todd Lefkowitz, M.D., Georgette Temple, and Mark Ravis.

As to the Declaration of Todd Lefkowitz, M.D., the court overrules Defendant’s general objections to the declaration and denies Defendant’s request to strike it in its entirety. The court notes that on May 11, 2026, Plaintiff submitted a copy of a portion of Moving Defendant’s deposition. In addition, the court overrules Specific Objection Nos. 1 through 3, and 5 through 8. The court overrules in part and sustains in part Specific Objection Nos. 4 and 9. Specifically, the court sustains in part:

- Specific Objection No. 6 only as to hearsay dependent statements regarding third party assistance organizing Plaintiff’s clothing to the extent those statements are offered for the truth of the matter asserted rather than as evidence of Plaintiff’s subjective perception or functional limitations; and
- Specific Objection No. 9 only to the extent the Declaration broadly references alleged conduct without specifying which conduct is specifically attributable to Defendant Rothlisberger.

As to the Declaration of Georgette Temple, the court overrules General Objection, and overrules Specific Objection Nos. 1, 3, 5, and 7. The court also overrules in part and